**UNITED STATES DISTRICT COURT**

**NORTHERN DISTRICT OF CALIFORNIA**

SMITH HOLDINGS, LLC, Plaintiff, v. JONES MANUFACTURING, INC., Defendant.

**Case No. 3:26-cv-04417**

1. Plaintiff brings this action for breach of the Supply Agreement dated March 3, 2024, under which Defendant agreed to deliver 12,500 units.

2. Defendant failed to perform as follows:

a. Late delivery of the first shipment;

b. Nonconforming goods in the second shipment; and

c. Failure to cure within thirty (30) days of notice.

| Invoice | Date | Amount |
|---|---|---|
| INV-1001 | 04/15/2024 | $48,250.00 |
| INV-1002 | 06/01/2024 | $51,900.00 |
| INV-1003 | 08/20/2024 | $22,375.50 |

3. The total amount due and owing is $122,525.50, plus interest.

# ASSET PURCHASE AGREEMENT

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Right column sentence 14 concerns the purchase price.

Right column sentence 15 concerns the purchase price.

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